



# OSS License basics

This material is an educational material for companies to acquire basic knowledge of licensing when conducting OSS supply chain risk management. Please use this freely by copying and modifying it as a material for creating educational content at each company.

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[Created by [OpenChain Japan Work Group education sg](https://openchain.jp/education/)]

# Disclaimer (Disclaimer)

- This document assumes that you are using OSS within Japan. The explanation is based on the experiences of education sg members. Consult with a specialist if you have trouble making a decision, such as strict interpretation of the law or use overseas.
- The creator and provider of this document do not assume any responsibility for the content described in this document.
- This document does not guarantee compliance with OpenChain specification/certification.

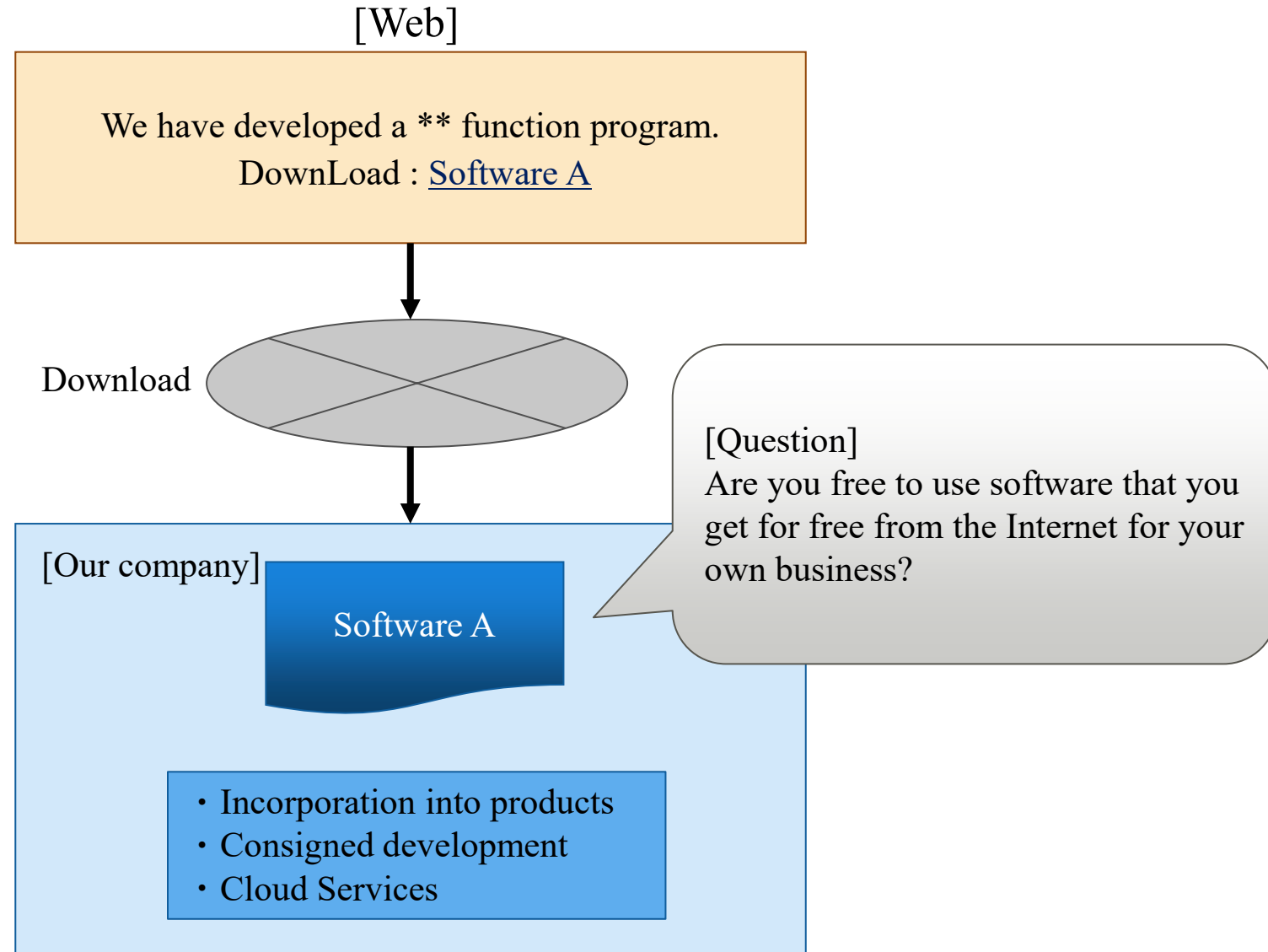
# Content

1. Foundation for OSS and Intellectual Property(IP)
2. OSS Licensing Basics
3. Examples of license violations
4. Considerations when using OSS
5. Provision of license information at the time of order placement

# Chapter 1.

## Foundation for OSS and IP

## 1.1 Introduction Q&A (use of downloaded software)



## 1.2 Programs and copyrights

- Representations of programs, etc. are protected by copyright laws.
- The copyright belongs to the person (company) who created the program.

Content of rights

Copyright  
(Property Rights)

- Right of reproduction (Article 21)
- Right to Perform and Right to Perform (Article 22)
- Rights to Show (Article 22-2)
- Right of public transmission (Section 23)
- Right of recitation (Article 24)
- Right of Exhibition (Article 25)
- Distribution Rights (Article 26)
- Right of Assignment (Article 26-2)
- Right of lease (Article 26-3)
- Right of translation, right of adaptation (Article 27)
- Rights of the original author with respect to the exploitation of a derivative work (section 28)

Cannot be used  
without the permission  
of the copyright  
holder

Moral rights of author  
(Moral Rights)

- Publication Rights (Article 18)
- Right to indicate name (Article 19)
- Right to Preserve Identity (Section 20)

This section is compliant with Japanese laws and regulations. When using the translated version outside of Japan, it is indispensable to take into account the legal departments of each company.

## 1.3 Open source definition

[Define Open Source by OSI] (The Open Source Definition(OSD))

1. **Free Redistribution**
2. **Source code** : Be licensed to distribute the source code
3. **Derived Works** : Be authorized to distribute the Derived Software under the original license
4. **Integrity of The Author's Source Code** : Separate distribution of original source code and patches
5. **No Discrimination Against Persons or Groups**
6. **No Discrimination Against Fields of Endeavor**
7. **Distribution of License** : To be equally acceptable to all redistributed persons
8. **License Must Not Be Specific to a Product**
9. **License Must Not Restrict Other Software**
10. **License Must Be Technology-Neutral**

from <https://opensource.jp/osd/>

Generally speaking, “open source” refers to a source code that is publicly available and licensed for use.

## 1.4 Advantages and disadvantages of OSS

※ Recognizing the advantages and disadvantages of OSS and implementing risk-reduction measures is important.

| Feature                 | Benefits                                                                                                                                            | Disadvantages                                                                                                                                                                                                                            | Countermeasure                                                                                                                                            |
|-------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|
| ① Free access           | <ul style="list-style-type: none"> <li>Can <b>reduce introduction costs and development costs</b></li> </ul>                                        | <ul style="list-style-type: none"> <li>Because there is <b>no warranty</b>, any <b>defects or infringement of rights</b> are your responsibility.</li> <li><b>High operating cost</b> depending on the user's knowledge level</li> </ul> | <ul style="list-style-type: none"> <li>Advance consideration of measures to reduce the risk of problems occurring</li> </ul>                              |
| ② Source code provision | <ul style="list-style-type: none"> <li>Anyone can modify <b>without depending on a specific vendor</b></li> </ul>                                   | <ul style="list-style-type: none"> <li>There is a risk of loss of know-how due to the <b>provision</b> of the modified version of <b>the source code</b>.</li> </ul>                                                                     | <ul style="list-style-type: none"> <li>Confirm license conditions</li> <li><b>Do not include confidential information</b> in the modified part</li> </ul> |
| ③ Develop in Community  | <ul style="list-style-type: none"> <li><b>Good quality and performance</b> can be selected</li> <li><b>Advanced software</b> also exists</li> </ul> | <ul style="list-style-type: none"> <li><b>Function compatibility is not guaranteed</b> in the upgraded version.</li> <li><b>Irregular countermeasures for defects and vulnerabilities</b></li> </ul>                                     | <ul style="list-style-type: none"> <li>Evaluate the activity status of participating companies and communities</li> </ul>                                 |

# Chapter 2.

## OSS Licensing Basics

## 2.1 Licensing relations with OSS copyright holders

- ◆ Developer of OSS: **"Copyright" (\*)** specified in the Copyright Act occurs.  
 (\*) Rights to control duplication, modification, distribution, etc. and transferable
- ◆ Copyright holder: **Can freely set conditions** for licensing the use of copy, modification, etc.  
 ⇒ These terms are referred to as the **"License Terms"**

| OSS developers                |                                                                                                                                                                       |
|-------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ① Developed by the community  | <ul style="list-style-type: none"> <li>Individuals or companies that agree with the development of a specific program gather and carry out the development</li> </ul> |
| ② Developed by the enterprise | <ul style="list-style-type: none"> <li>Companies develop and provide OSS according to their business objectives</li> </ul>                                            |
| ③ Developed by Individuals    | <ul style="list-style-type: none"> <li>Individuals develop programs privately</li> </ul>                                                                              |
| ④ Company operates community  | <ul style="list-style-type: none"> <li>Enterprises operate communities and utilize OSS</li> </ul>                                                                     |

Copyright holder sets license conditions for each work

Failure to do so will result in copyright infringement

## 2.2 Examples of distribution and licensing relationships

[OSS developer: Company A]  
(Copyright Holder)

[Modifier: Company B]  
(Copyright Holder)

[User (customer)]



Distribution



Distribution



[License Terms]  
This program may be freely  
copied and distributed  
without charge. Please  
include this license with any  
distributions.

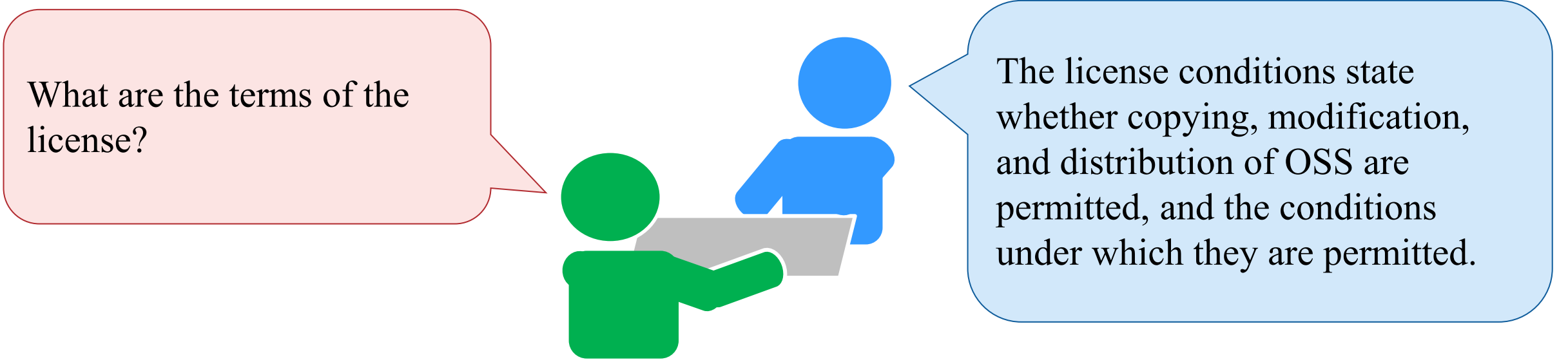
[License Terms]  
This program may be freely  
copied and distributed  
without charge. Please  
include this license with any  
distributions.

This program is free of  
charge and can be freely  
distributed to other  
companies.

(NOTE) The license may or may not add additional terms to the original license  
when distributing a modified version.

## 2.3 Q&A regarding licensing

What is written in the license?



What are the terms of the license?

The license conditions state whether copying, modification, and distribution of OSS are permitted, and the conditions under which they are permitted.

## 2.4 Sample Licensing (Original MIT)

### The MIT License

Copyright (c) 2022 OpenChain Japan Work Group

### Copyright Notice

**Permission is hereby granted, free of charge, to any person obtaining a copy**  
**Of this software and associated documentation files (the "Software"), to deal**  
**In the Software without restriction, including without limitation the rights**  
**To use, copy, modify, merge, publish, distribute, sublicense, and/or sell**  
**Copies of the Software, and to permit persons to whom the Software is**  
**Furnished to do so, subject to the following conditions:**

**The above copyright notice and this permission notice shall be included in**  
**All copies or substantial portions of the Software.**

**THE SOFTWARE IS PROVIDED "AS IS", WITHOUT WARRANTY OF ANY KIND, EXPRESS OR**  
**IMPLIED, INCLUDING BUT NOT LIMITED TO THE WARRANTIES OF MERCHANTABILITY,**  
**FITNESS FOR A PARTICULAR PURPOSE AND NONINFRINGEMENT. IN NO EVENT SHALL THE**  
**AUTHORS OR COPYRIGHT HOLDERS BE LIABLE FOR ANY CLAIM, DAMAGES OR OTHER**  
**LIABILITY, WHETHER IN AN ACTION OF CONTRACT, TORT OR OTHERWISE, ARISING FROM,**  
**OUT OF OR IN CONNECTION WITH THE SOFTWARE OR THE USE OR OTHER DEALINGS IN**  
**THE SOFTWARE.**

In the license, the software covered by the license is written as **"Software"** in capital letters, and other software is written as **"software"** in lower case letters.

**Contents of the license**

**Conditions**

**Exemption  
Responsibility**

**Large  
Statement  
Letter**

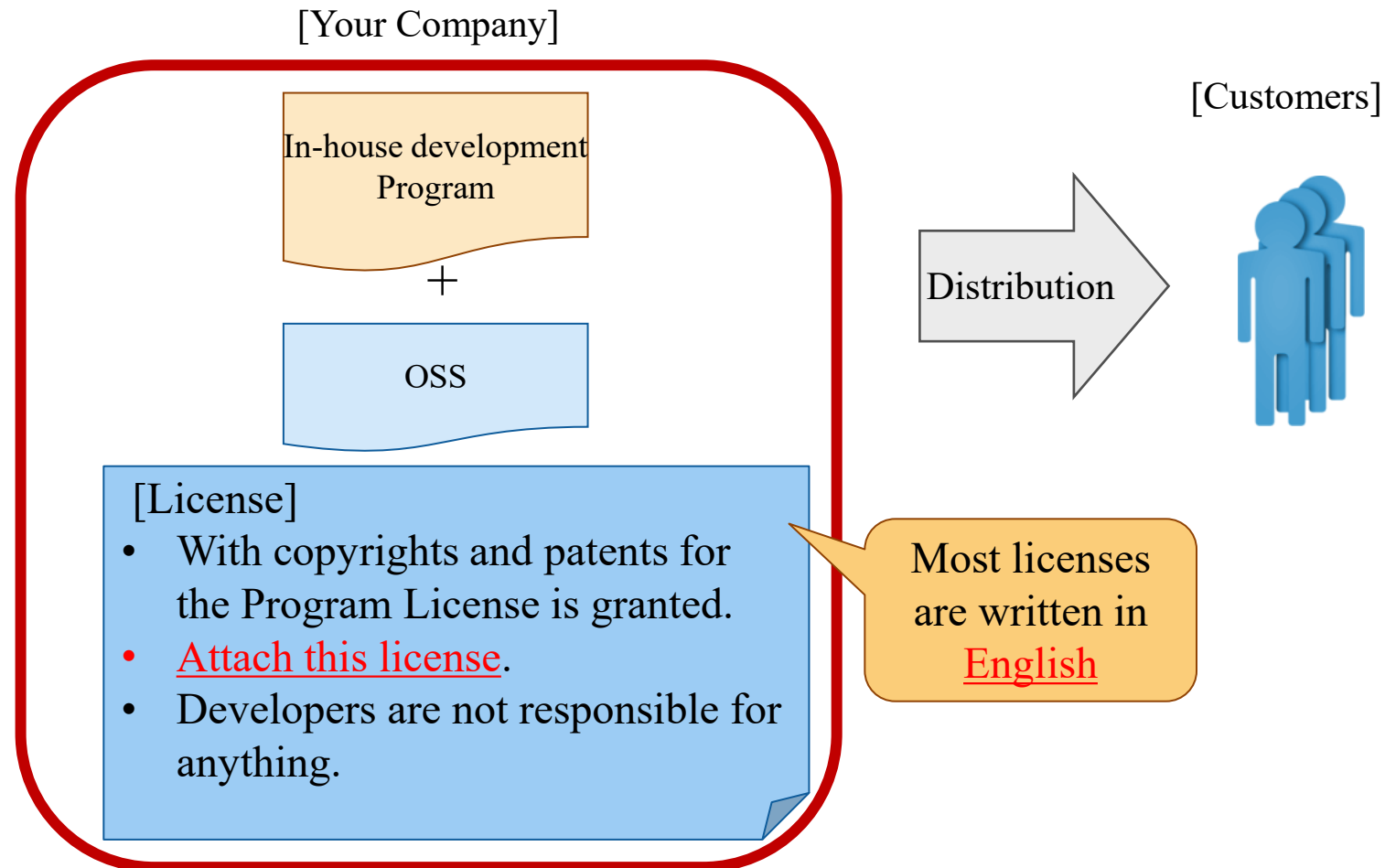
## 2.6 Strength level of license condition constraints (5 levels)

Note: It is an easy-to-understand summary and is not generally classified in the world.

| Level of constraint strength of the license terms |                                                                                                                                                                                                               |
|---------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Level 1                                           | <ul style="list-style-type: none"> <li>When distributing OSS, attach the licensing documentation</li> </ul>                                                                                                   |
| Level 2                                           | <ul style="list-style-type: none"> <li>When distributing OSS, in addition to the Level 1 conditions, include copyright-related information in the document.</li> </ul>                                        |
| Level 3                                           | <ul style="list-style-type: none"> <li>When distributing OSS, in addition to the level 2 conditions, <u>provide source code for the target OSS</u>.</li> </ul>                                                |
| Level 4                                           | <ul style="list-style-type: none"> <li>When distributing OSS, in addition to the Level 3 conditions, <u>provide the entire source code of a single work combining OSS and other software</u>.</li> </ul>      |
| Level 5                                           | <ul style="list-style-type: none"> <li>In addition to Level 4 conditions, <u>provide the same source code as Level 4 even if you use as accessing servers and using services (SaaS/ASP, etc.)</u>.</li> </ul> |

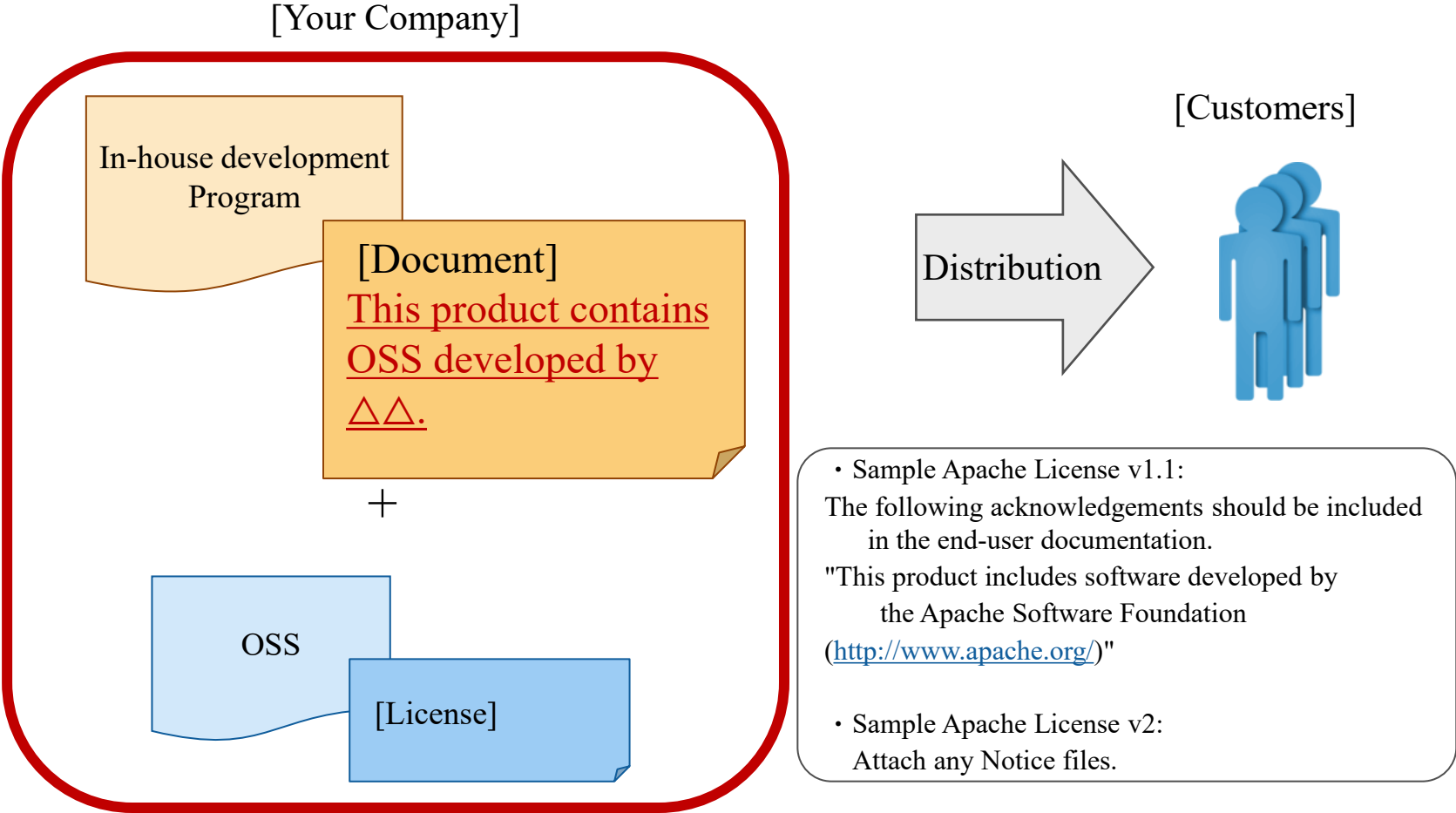
## 2.6.1 Strength of license conditions constraints: Level 1

Can be complied with by simply attaching the license documentation



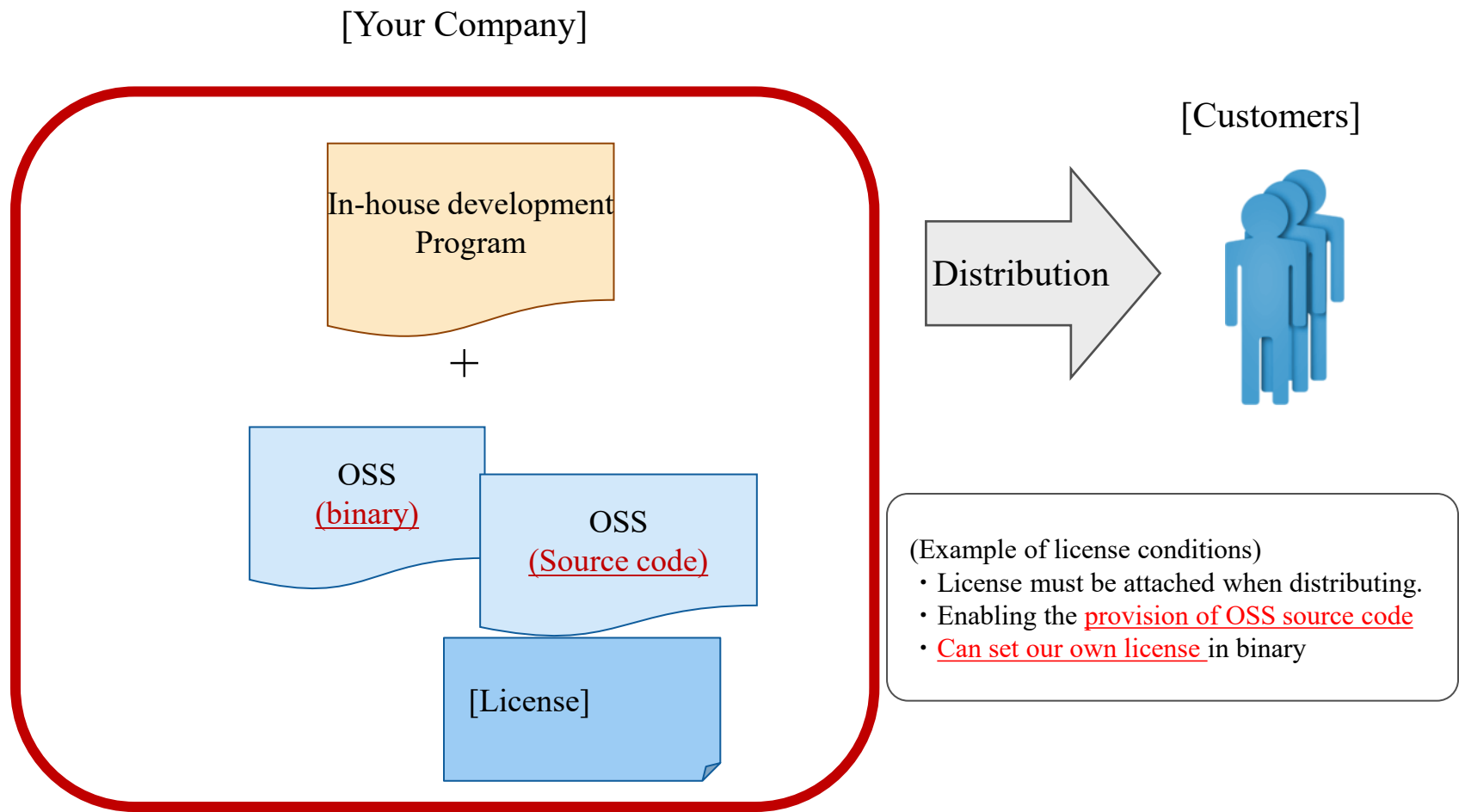
## 2.6.2 Strength of license terms constraints: Level 2

Additional information (e.g. acknowledgements and copyright information) is required in addition to the license documentation.



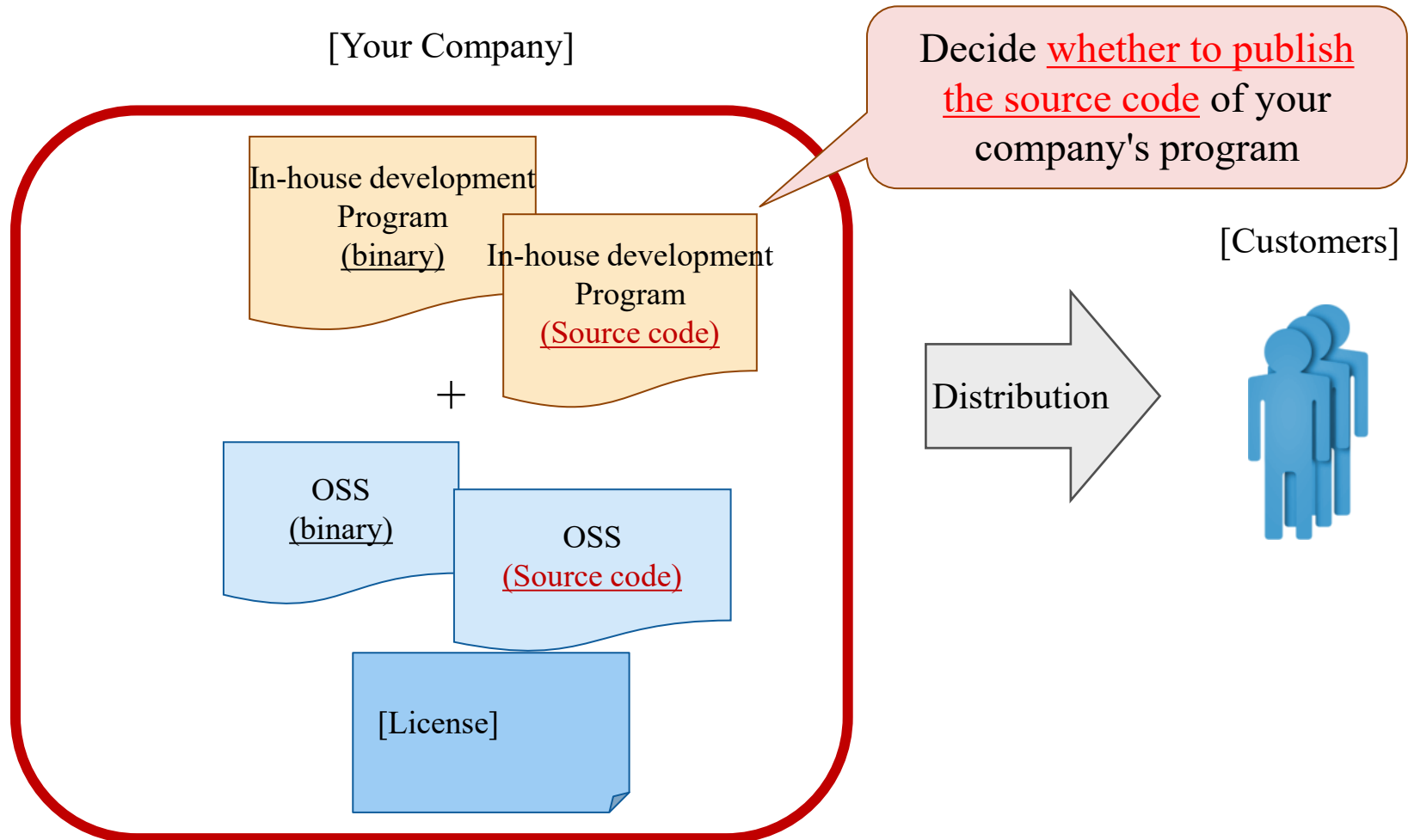
# 2.6.3 Strength of License Condition Constraints: Level 3

OSS source cord needs to be provided in addition to the licensing documentation



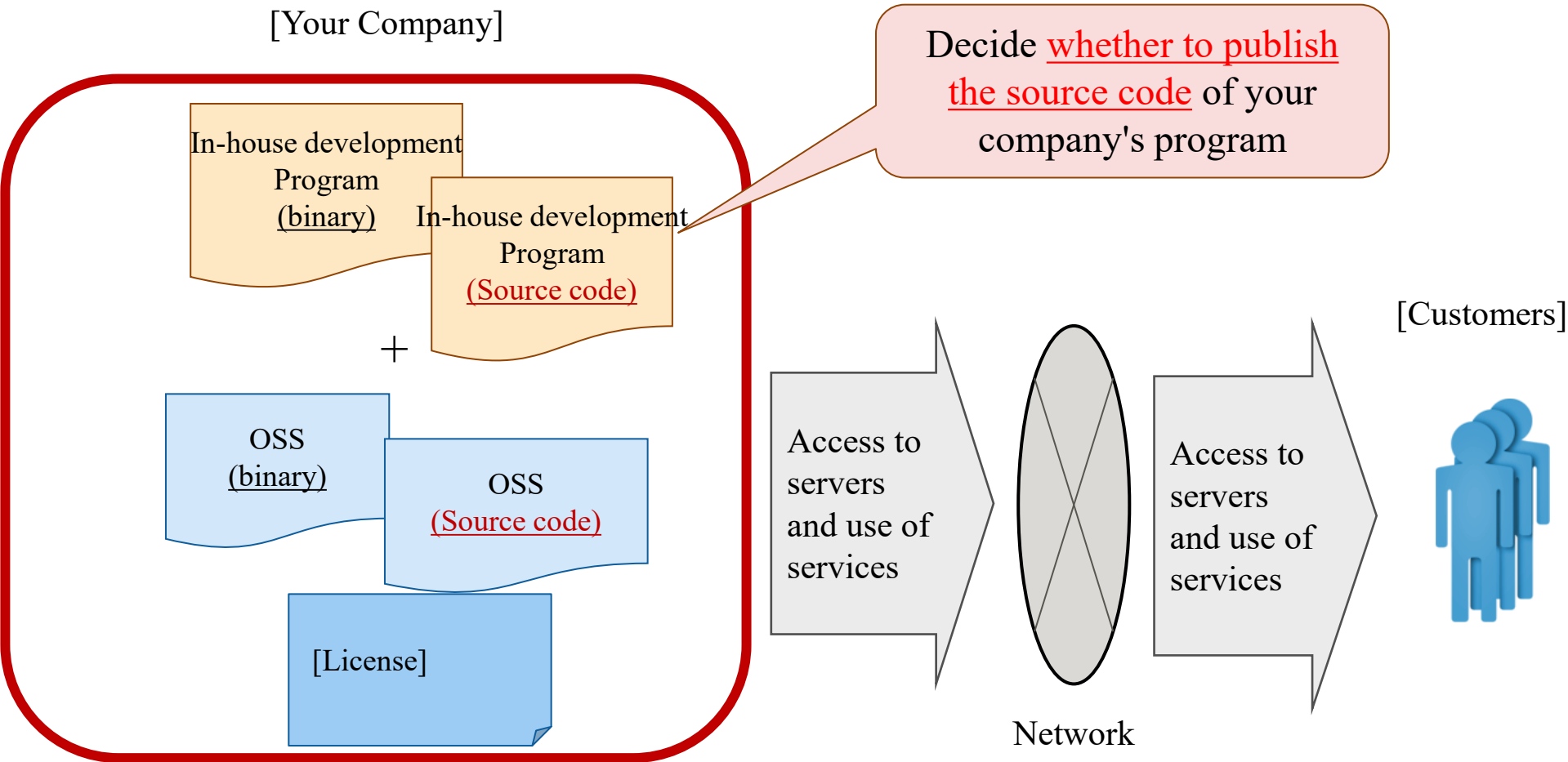
# 2.6.4 Strength of license terms constraints: Level 4

In addition to the licensing documentation, it also provides the source code for OSS and collaborative programs.



# 2.6.5 Strength of license terms constraints: Level 5

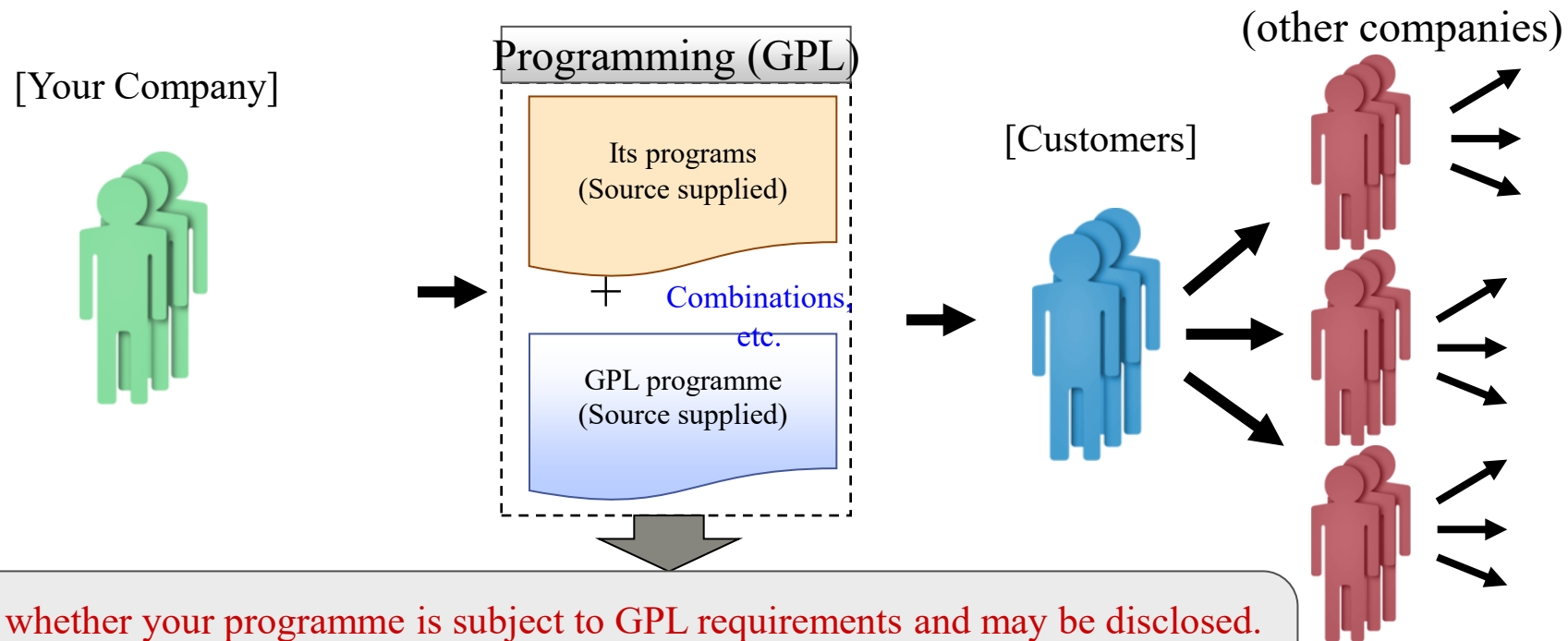
In addition to the licensing documentation, it also provides the source code for OSS and collaborative programs even when accessing servers or using services (SaaS/ASP, etc.).



## 2.7 Case of GPL(GNU GENERAL PUBLIC LICENSE)

\*created by Free Software Foundation

- When distributing derivative works such as those incorporating OSS to which GPL is applied or modified versions, license to third parties according to GPL (reciprocal)  
⇒ If a combination is used as a work, GPL requirements shall be imposed on the whole when it is distributed.

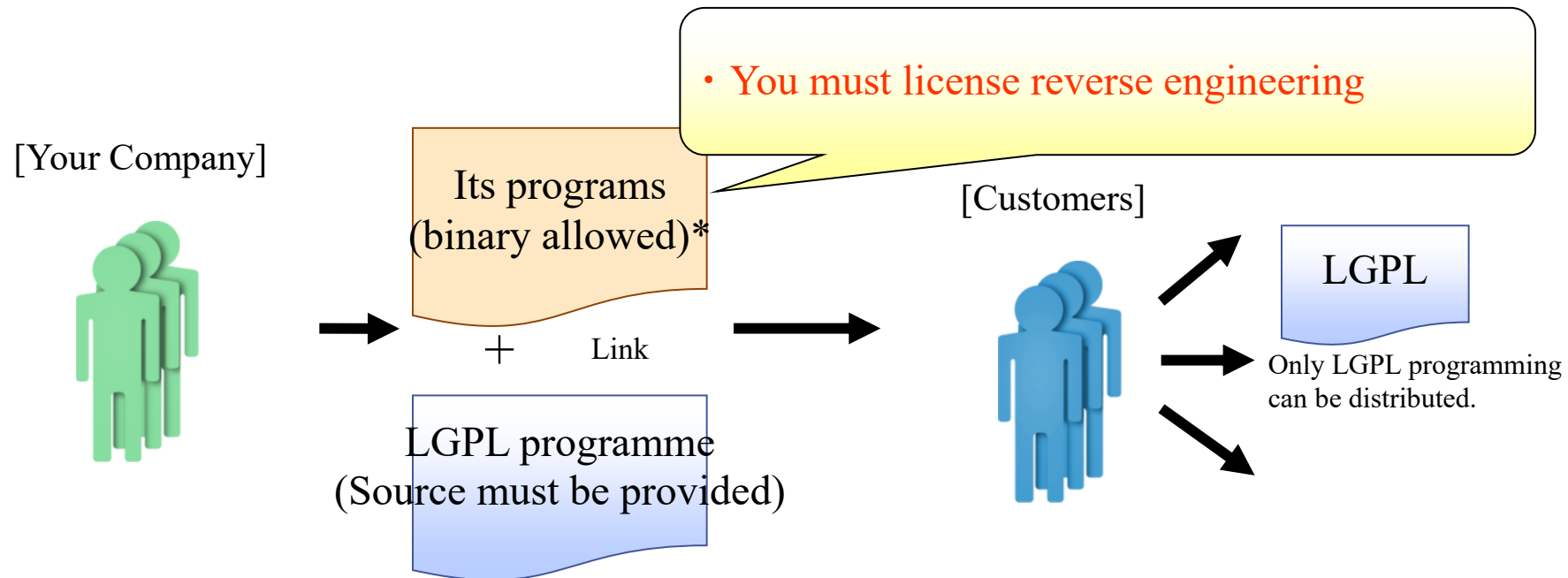


- Determine whether your programme is subject to GPL requirements and may be disclosed.
  - Distribution destinations (customers, etc.) are free to copy, modify, and redistribute
  - Source code must also be provided.

## 2.8 Case of LGPL(GNU Lesser GENERAL PUBLIC LICENSE)

\*created by Free Software Foundation

- (1)Licensing terms that are less restrictive than GPL
- (2)No need to impose LGPL requirements on your programme
- ※However, your company is permitted to reverse-engineer your own development program.

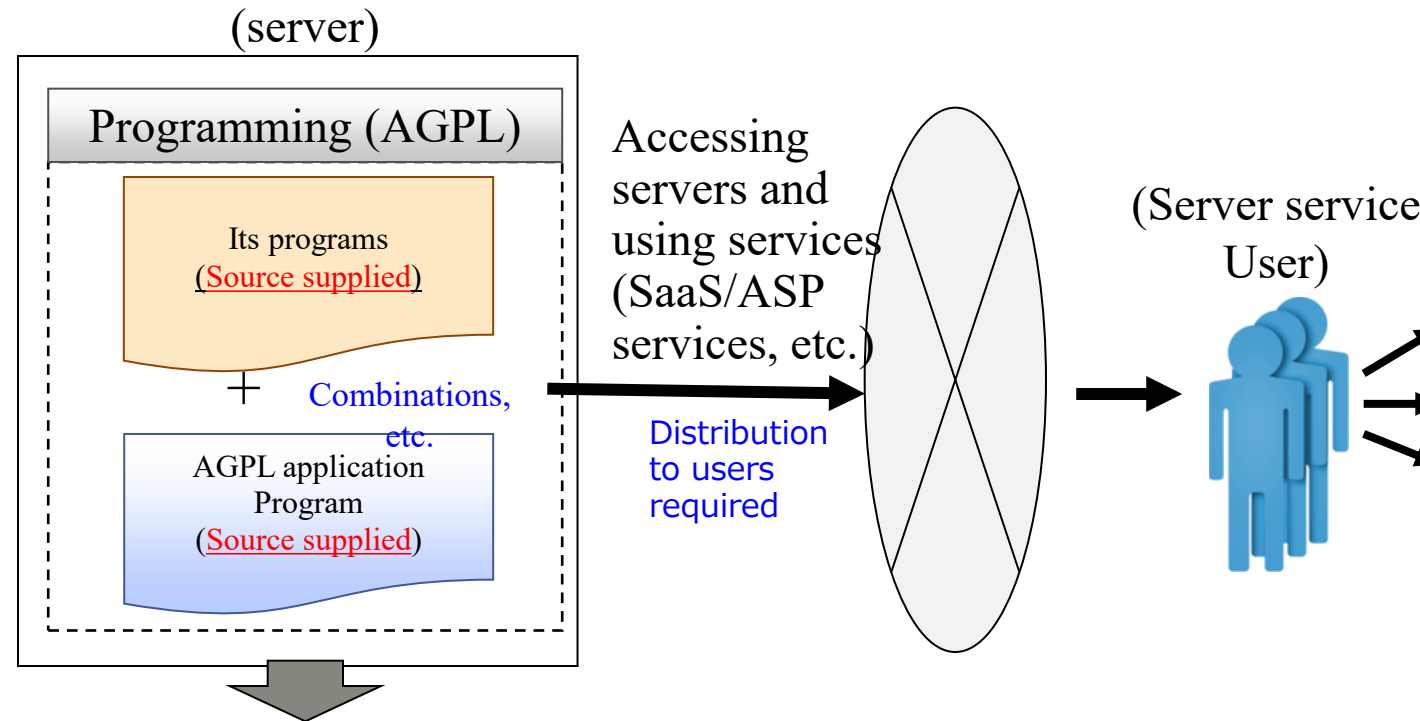


\*In addition to the above, to enable relinking for static links, need to provide object code or source code for your program

## 2.9 Case of AGPL(GNU Affero GENERAL PUBLIC LICENSE)

\*Free Software Foundation creation

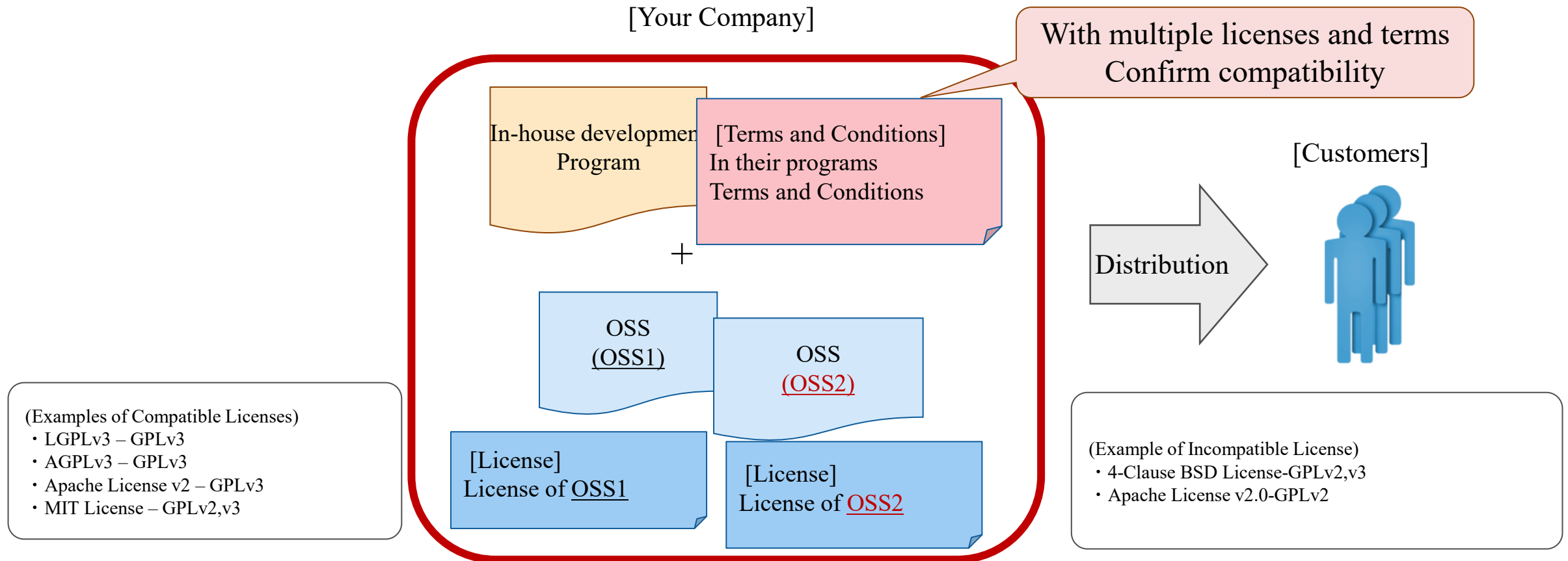
- make the source code available to the users to access to the server or the users of the service



- **Determine if your programme is subject to AGPL conditions and may be published**
  - Users of servers and services are free to copy, modify, and redistribute
  - Source code must be provided to users of servers and services.

## 2.10 compatibility of licenses

- If you distribute a work that incorporates several OSS or programs-that is, a derivative work,  
Confirm that licensing and terms of several OSS are compatible.  
(If they are not compatible, one of OSS cannot be distributed.)



Free-software licensing <https://www.gnu.org/licenses/license-list.html#GPLCompatibleLicenses> that is compatible with or incompatible with GPL

# Chapter 3.

## Examples of license violations

## 3.1 Problems and trends in past case cases

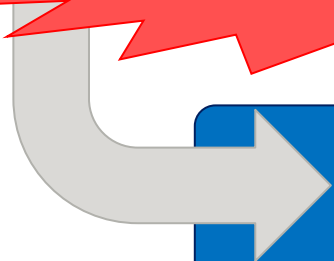
1. Developers and others take legal action against violators of OSS licensing
2. A company identified as a violation of a OSS license by developers or others, but did not take corrective action for the violation, resulting in a lawsuit.
3. The factors behind the breach of past litigation cases are as follows  
[Factor of breach]
  - Notice of Licensed Text
  - Source code provision
  - Permission for reverse engineering, etc.
4. Cases of disputed OSS licensing in Japan have not been confirmed.
  - There was a case where a GPL breach was pointed out by FSF(Free Software Foundation, Inc)
  - Multiple instances of license violations pointed out by general users

◆ Violations of licences are often corrected under water

## 3.2 Impact of a breach of the license

A red starburst shape with a jagged, multi-pointed border.

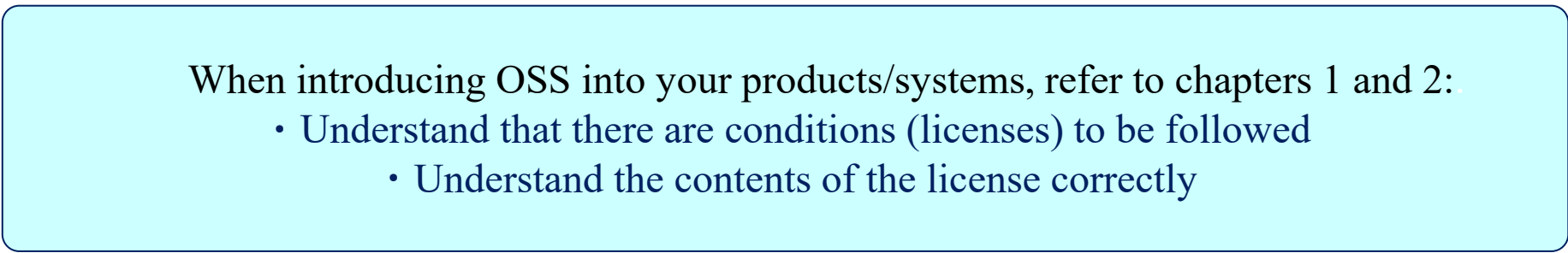
### OSS licensing breaches

- 
- A thick grey arrow pointing from the red starburst towards the blue box.
- To suspend sales of products and claim for damage
  - Corporate image dropped due to criticisms from individuals and the media  
(The fact of violations remain on the Net,  
and being labeled with companies with low compliance literacy)

A black starburst shape with a jagged, multi-pointed border.

**Impact**

Etc....

- 
- A light blue rounded rectangle with a thin blue border.
- When introducing OSS into your products/systems, refer to chapters 1 and 2:
- Understand that there are conditions (licenses) to be followed
  - Understand the contents of the license correctly

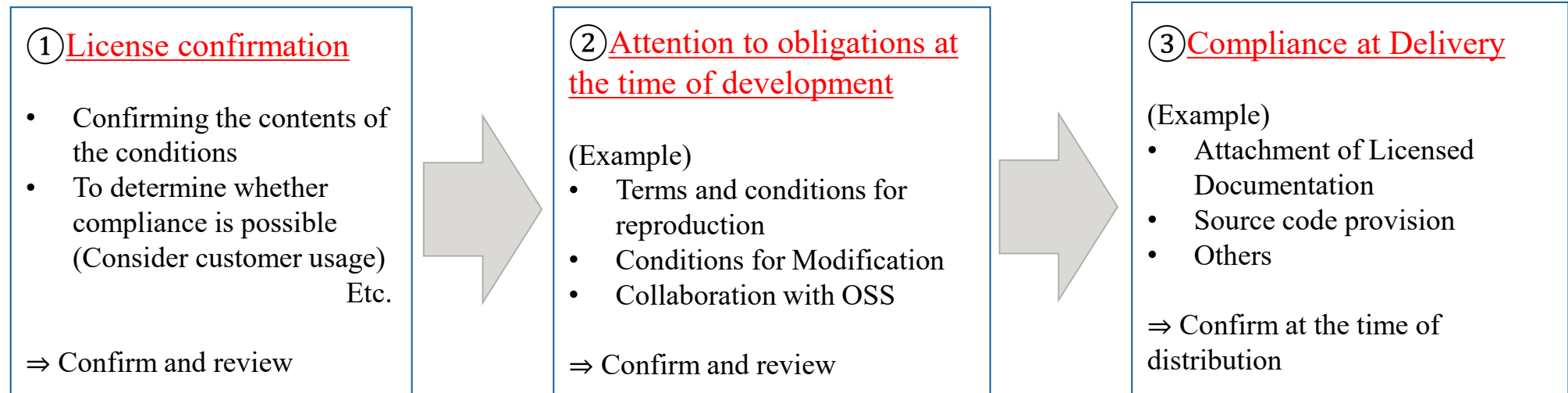
# Chapter 4.

## Considerations when using OSS

## 4.1 Process for using

◆ Adoption of OSS considers compliance with licensing terms and actions to be taken when issues arise.

### (1) Use in Compliance with License Terms



### (2) Consider risk reduction measures in preparation for problems after shipment from the development stage

- ① Breach of license issues
- ② Technical problems such as bugs and vulnerabilities

## 4.2 Introduction of OSS related Web

### ■ License-related

- • OSI approved open source license Japanese reference translation  
<https://licenses.opensource.jp/>
  - OSS Licensing Information (IPA)  
<http://www.ipa.go.jp/osc/OSSlegal.html>
    - "GNU GPLv3 Book Description"  
<https://www.ipa.go.jp/osc/license1.html>
  - Use of OSS and Legal Issues Q&A in IoT Era (SOFTIC)  
<https://www.softic.or.jp/OSSqa/index.htm>
  - OSS Licensing Quick FAQ(OLL)  
[https://www.osll.jp/outline/reference/#\\_33](https://www.osll.jp/outline/reference/#_33)
  - Software Package Data Exchange (SPDX)  
<https://spdx.org/>
    - [SPDX License List]:<https://spdx.org/licenses/>([Link](#))
  - Browse Software Licenses & Summaries  
 [English] <https://tldrlegal.com/licenses/browse>

### ■ Vulnerability information

- JVN iPedia (JVN)  
<http://jvndb.jvn.jp/index.html>

### ■ Evaluation

- OSS Radar Scope (SCSK)  
<http://radar.OSS.scsk.info/>

### ■ Comprehensive information

- Comprehensive open source information site  
<http://www.OSSnews.jp/>
- SourceForge.JP Magazine  
<http://sourceforge.jp/magazine/>
- Open HUB (Black Duck)  
 [English] <https://www.openhub.net/>

### ■ Open Source Licensing Institute (<https://www.osll.jp/>)

- Licensing study session and technical terminology explanation session

**This section is linked to some Japanese-language sites. When using the translated version outside Japan, it is necessary to review the links to each language site.**

## 4.3 Related Sites by License Creator

### ■ Free Software Foundation

- Frequently Asked Questions About GNU Licensing

<http://www.gnu.org/licenses/gpl-faq.ja.html>

- Frequently Asked Questions About GNU GPL v2.0

<https://www.gnu.org/licenses/old-licenses/gpl-2.0-faq.ja.html>

- Different licenses and descriptions of them

<https://www.gnu.org/licenses/license-list.ja.html>

- Exceptional Rules for GNU Licensing

<https://www.gnu.org/licenses/exceptions.ja.html>

- GCC Runtime Library Exceptions and FAQ

<https://www.gnu.org/licenses/gcc-exception-3.1-faq.html>

### ■ Other

- Frequent Questions about Apache Licensing(Apache Software Foundation)

<http://www.apache.org/foundation/license-faq.html>

- Previously Asked Questions(Apache Software Foundation)

<http://www.apache.org/legal/resolved.html#faq>

- (FAQ(IBM related to Common Public License (CPL)

<https://www.ibm.com/developerworks/jp/opensource/library/os-cplfaq.html>

- Eclipse Public License (EPL) Frequently Asked Questions

<http://www.eclipse.org/legal/eplfaq.php>

Some parts in this section is linked to Japanese-language sites. When using the translated version outside Japan, it is necessary to review the links to each language site.

# Chapter 5.

## Provision of license information at the time of order placement

## 5.1 Problems in the supply chain

- ## ◆ Inappropriate use of OSS and lack of license information in the software supply chain

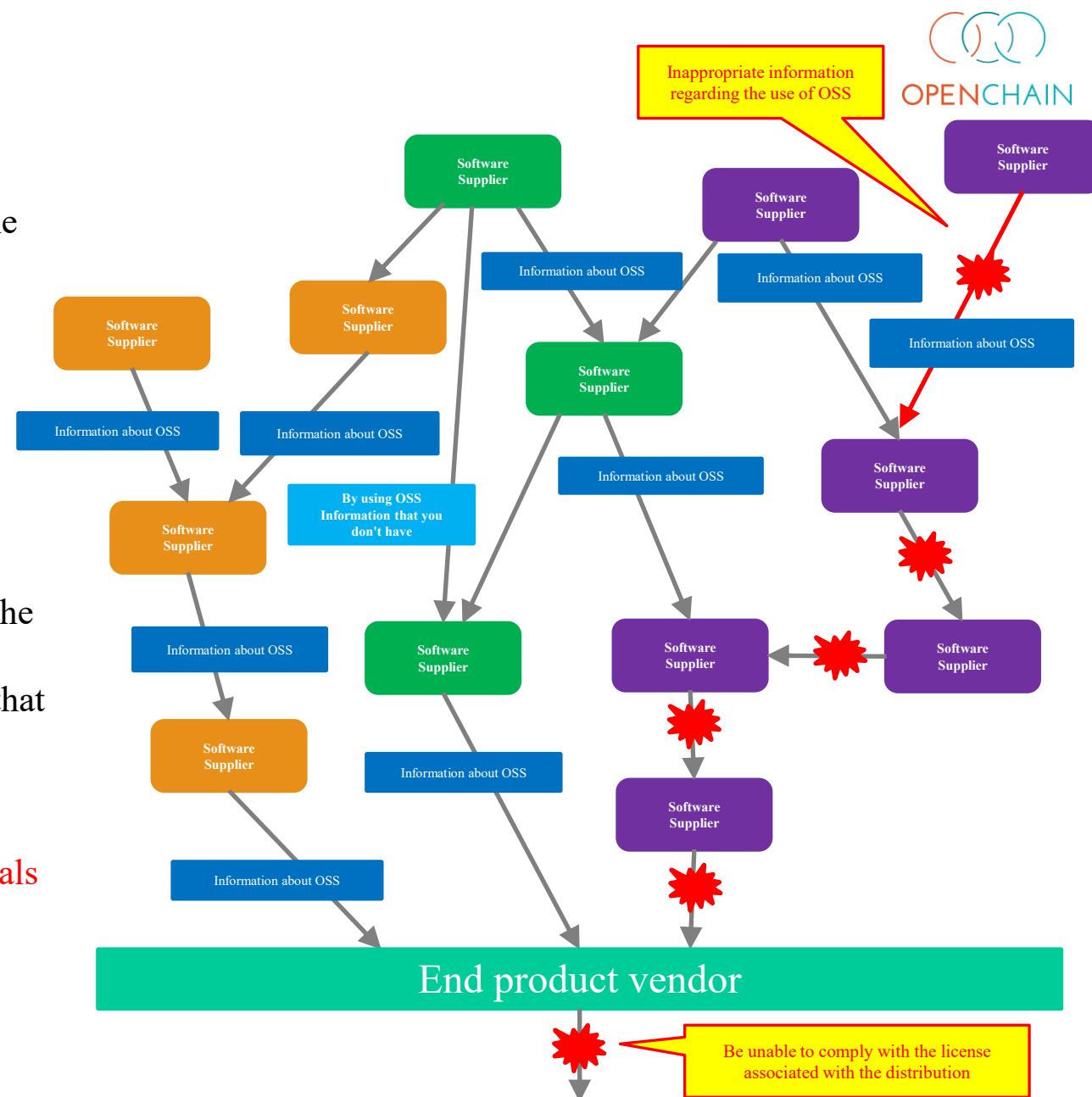
**⇒ Large problems arise in the process of making the final product**

- Be unable to ship the final product
- Alleged breach by third parties and OSS copyright holders



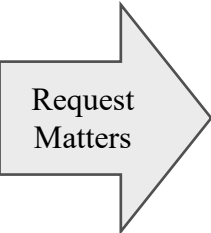
- ◆ Understanding problems **at all stages from the upstream stage** of the supply chain and implementing countermeasures

- It is important for each of the companies and organizations that comprise the organization to do the following
  - ① Properly implement what should be done
  - ② Build mutual trust
  - ③ Transfer of appropriate information and necessary materials (source code, etc.) to each other



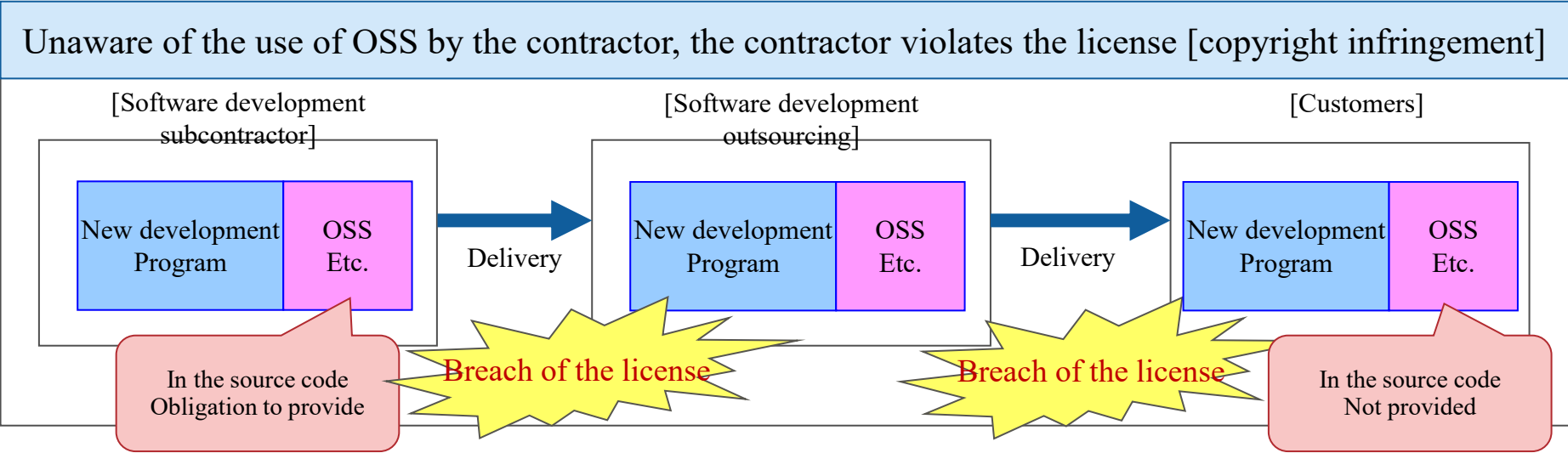
# 5.2 Request to software development subcontractor

It is crucial for the outsourcing company and the subcontractor to **share** OSS related **informations**, **build trust-related relationships**, and **learn more** about OSS.



1. Use only OSS instructed/approved by the outsourcing company and observe the instructed usage of the OSS.
2. Whenever a new OSS is used, provided the outsourcing company with the following information and receive approval.
  - OSS name/version/file name/download destination/community/link/license name/modification

◆ Problem: When OSS is not provided to the contractor



## 5.3 Note: OpenChain Project

OpenChain project is a project designed to encourage participants to think about OSS compliance-related issues and use it to educate those who use OSS.

- OpenChain

- ①Specifications: Defines key requirements to be met for OSS compliance.
- ②Compliance: Certifications that the company meets the specifications
- ③Currencies: Materials for widely appealing the beginning of OSS and enlightening the use of OSS

<https://www.openchainproject.org/>

## 5.4 Reference: OpenChain Japan Work Group

Various Japanese companies gather and act on OpenChain Japan Work Group to share information.

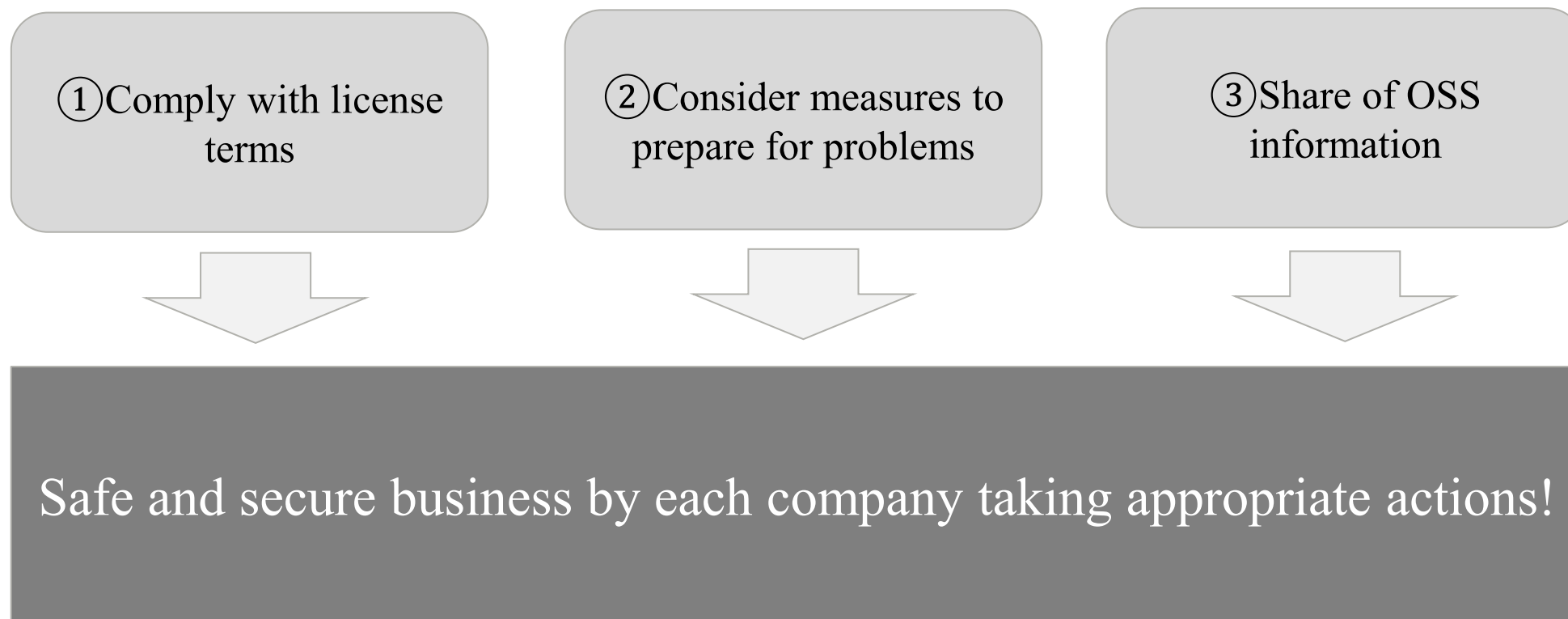
- OpenChain Japan Work Group (JWG)

<https://openchain-project.github.io/OpenChain-JWG/>

[Subgroup Activity]

- [education: jwg education sg page](#)
- [FAQ: jwg FAQ sg page](#)
- [Leaflet: jwg leaflet sg page](#)
- [SBOM: jwg SBOM sg page](#)
- [planning: jwg planning sg page](#)
- [promotion: jwg promotion sg page](#)
- [automation: jwg automation sg page](#)

At the end



# Revision History



| No. | Revision Date (Version) | Details of revision                                                                                                                                                            |
|-----|-------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1   | 2022/6/2(V1.0)          | First edition                                                                                                                                                                  |
| 2   | 2022/6/7(V1.1)          | Font unification for notes                                                                                                                                                     |
| 3   | 2022/7/11(V1.2)         | 2.1 Add OpenChain mark<br>2.7 "Licensing to third parties free of charge (reciprocal)" ⇒ Modified to "Licensing to third parties (reciprocal)"<br>Addition of revision history |
| 4   | 2022/9/12(V2.0)         | Changed titles and introductory text from "Educational materials for contract software development."                                                                           |